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February 24, 2025

By: Murdock

An Act relating to the Oklahoma Farmed Cervidae Act; defining term; requiring person to obtain a commercial harvesting facility license for certain purpose; authorizing the Oklahoma Department of Agriculture, Food, and Forestry to require application and inspection for licensure; establishing license fee; requiring application for license after certain license expires; providing for promulgation of rules; amending 29 O.S. 2021, Section 4-106, which relates to commercial hunting areas; removing reference to certain type of license; updating statutory language; providing for codification; providing for effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6-517 of Title 2, unless there is created a duplication in numbering, reads as follows:

A. For purposes of this section, "commercial harvesting facility" means a privately or publicly owned premises managed or engaged on a business basis for the harvesting or hunting of legally acquired and privately owned cervidae, which may include white-tailed deer, mule deer, and elk, cervidae hybrids, turkey, exotic species, and exotic hybrid species, for barter, for the offer to

1 sell, or for the possession with intent to sell for profit or
2 monetary gain.

3 B. No person may propagate or hold in captivity any wildlife or
4 domesticated animals hunted for sport for a commercial harvesting
5 facility without having procured a commercial harvesting facility
6 license from the Oklahoma Department of Agriculture, Food, and
7 Forestry. A commercial harvesting facility shall be issued a
8 commercial harvesting facility license upon completion of an
9 application and adherence to all applicable laws and rules governing
10 the harvesting of legally acquired cervidae, which may include
11 white-tailed deer, mule deer, and elk, cervidae hybrids, turkey,
12 exotic species, and exotic hybrid species harvested in a commercial
13 harvesting facility. Nothing in this section shall allow a person
14 to propagate or hold in captivity any wildlife belonging to the
15 state.

16 C. Before obtaining a commercial harvesting facility license or
17 renewal of a license, the applicant shall submit proof that any
18 additional wildlife or domesticated animals have been secured from a
19 source other than wild stock in this state.

20 D. The Secretary of Agriculture, State Veterinarian, or his or
21 her designees shall have the authority to inspect a commercial
22 harvesting facility and its operations at any time upon evidence of
23 probable cause that a violation of this section or of the Oklahoma
24

1 Farmed Cervidae Act has occurred. The Department shall be required
2 to provide notice of all other inspections as determined by rule.

3 E. The annual fee for a commercial harvesting facility license
4 shall be Three Hundred Dollars (\$300.00).

5 F. All licenses issued pursuant to this section shall expire
6 August 31 of each year. After the effective date of this act,
7 facilities issued a big game license or a combination of big game
8 and upland game license pursuant to Section 4-106 of Title 29 of the
9 Oklahoma Statutes shall be required to obtain a commercial
10 harvesting facility license pursuant to this section.

11 G. The Department shall promulgate rules as necessary to
12 implement the provisions of this section.

13 SECTION 2. AMENDATORY 29 O.S. 2021, Section 4-106, is
14 amended to read as follows:

15 Section 4-106. A. No person may propagate or hold in captivity
16 any wildlife or domesticated animals hunted for sport for commercial
17 hunting area purposes without having procured a license from the
18 Director of ~~the Department of~~ Wildlife Conservation. Licenses ~~shall~~
19 ~~be classified as big game, upland game, or a combination of big game~~
20 ~~and~~ issued pursuant to this section shall be for commercial hunting
21 areas for upland game.

22 ~~1. A big game license shall be required for legally acquired~~
23 ~~exotic ungulates, domesticated animals so designated by the Oklahoma~~
24 ~~Wildlife Conservation Commission, exotic swine, and legally acquired~~

1 ~~whitetail and mule deer, turkey and other species of big game~~
2 ~~lawfully taken under the provisions of subsection A of Section 5-411~~
3 ~~and Section 5-401 of this title. Wildlife that has been crossbred~~
4 ~~with exotic wildlife shall be considered native and not exotic~~
5 ~~unless documentation shows otherwise.~~

6 2. An upland game license shall be required for legally
7 acquired captive-raised pheasants, all species of quail, Indian
8 chukars, ~~water fowl~~ waterfowl, and other similar or suitable
9 gallinaceous birds; ~~and shall include turkey if no other big game~~
10 ~~species are listed on the license/application.~~

11 B. Before obtaining a an upland game license or a renewal of a
12 license the applicant shall submit proof that such wildlife or
13 domesticated animals hunted for sport will be or have been secured
14 from a source other than the wild stock in this state. Any person
15 obtaining or renewing a an upland game license shall submit a true
16 and complete inventory of ~~said~~ the animals before a license shall be
17 approved. Each license shall specifically list the different
18 species and/or subspecies to be hunted on the listed hunting area or
19 premises.

20 C. Any game warden of the ~~Oklahoma~~ Department of Wildlife
21 Conservation shall have authority to inspect any and all records and
22 invoices pertaining to the commercial hunting operations of any
23 person licensed or requesting licensure pursuant to subsection B of
24 this section and additionally shall have the authority to inspect

1 any and all facilities, equipment and property connected to the
2 hunting operation of any person licensed or requesting licensure
3 pursuant to subsection B of this section.

4 D. ~~1.~~ The annual fee for a commercial hunting area license for
5 upland game under this section shall be One Hundred Dollars
6 (\$100.00).

7 ~~2. The annual fee for a commercial hunting area license for:~~

8 a. ~~big game pursuant to this section shall be Two Hundred~~
9 ~~Fifty Dollars (\$250.00), or~~

10 b. ~~a combination of big game and upland game pursuant to~~
11 ~~this section shall be Three Hundred Fifty Dollars~~
12 ~~(\$350.00).~~

13 E. ~~All licenses~~ An upland game license issued pursuant to this
14 section shall expire on June 30 of each year.

15 F. Exemptions from this license requirement shall be operators
16 of running pens used for the performance test or training of dogs.
17 Operators of such running pens may acquire coyotes from wild stock
18 without having to possess a fur dealer's license for such purpose
19 and no license shall be required of those involved in performance
20 testing or training dogs in such running pens so long as no other
21 wildlife are taken or hunted in any manner.

22 G. Any person convicted of violating the provisions of this
23 section shall be punished by a fine of not less than Five Hundred
24 Dollars (\$500.00) nor more than One Thousand Five Hundred Dollars

1 (\$1,500.00), or by imprisonment in the county jail not to exceed
2 sixty (60) days, or by both such fine and imprisonment.

3 H. Any person convicted of violating the provisions of this
4 section shall have the ~~commercial hunting area~~ upland game license
5 revoked. No new license shall be issued for a period of six (6)
6 months from and after the date on which the revocation order becomes
7 effective.

8 I. The Department is authorized to promulgate rules pertaining
9 to ~~commercial hunting areas~~ this section.

10 SECTION 3. This act shall become effective July 1, 2025.

11 SECTION 4. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

15 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
16 February 24, 2025 - DO PASS
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